

26NNCV03276 26NNCV03276

County: los-angeles

Division: Civil Law and Motion

Department: D

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Case Number: 26NNCV03276 Hearing Date: August 7, 2026 Dept: D

TENTATIVE RULING

Calendar: 1

Date: August 7, 2026

Case No: 26NNCV03276 Trial Date: Not yet set

Case Name: Rewards Network Establishment Services Inc. v. Kalaveras – NH Inc., et al.

APPLICATION FOR WRIT OF POSSESSION

[CCP § 512.010]

Moving Party: Plaintiff, Rewards Network Establishment Services, Inc.

Responding Party: Defendants, Kalaveras – NH, Inc. et al [Unopposed]

RELIEF REQUESTED:

Order for writ of possession

CAUSES OF ACTION: from Complaint

1) Breach of Contract [against Merchant Defendants]

2) Breach of Contract [against Signatory]

3) Foreclosure of Security Interest [against Merchant Defendants]

4) Prejudgment Remedy – Replevin – Writ of Possession (Claim and Delivery)

SUMMARY OF FACTS:

The Complaint alleges that on June 26, 2025, Rewards Network Establishment Services, Inc. ("Plaintiff") and Kalaveras – NH Inc, a California corporation, Kalaveras BB Inc, a California corporation, Kalaveras – CVSA Inc, a California corporation, Kalaveras – ES Inc, a California corporation, Kalaveras – MV Inc, a California corporation; Kalaveras RC Inc, a California corporation, Kalaveras RS Inc, a California corporation, Kalaveras – SBO Inc, a California corporation, Kulturas SL Inc, a California corporation, Kulturas PD Inc, a California corporation, Mariposas COV Inc, a California corporation, and Kulturas Inc, a California corporation (collectively the "Merchant Defendants") entered into a Receivables Purchase and Marketing Agreement (the "Agreement"). Under the Agreement, Plaintiff purchased 100% of credit/debit card receivables generated by Rewards Network program members and received by the Merchant Defendants until Plaintiff received an aggregate amount of \$840,000.00, in exchange for a purchase price of \$600,000.00.

In addition to Plaintiff's ownership of Card Receivables, Section 18 of the Agreement grants Plaintiff "a continuing...security interest" in all of the Merchant Defendants' personal property and fixtures, tangible and intangible, wherever located, whether now owned or hereafter acquired, and all proceeds, to secure obligations that arise upon an Event of Non-Performance and the accelerated undelivered balance under Section 13 of the Agreement.

Plaintiff alleges that Merchant Defendants committed Events of Non-Performance under the Agreement by: (i) restricting Plaintiff's access to the Bank Account (as defined in Section 7 of the Agreement, the deposit account designated for ACH debits to collect Merchant Payments and Substitute Merchant Payments); (ii) allowing liens or encumbrances to attach to Plaintiff's interests; (iii) making materially false or misleading statements about the health of their businesses; and (iv) changing their legal name without providing advance notice. Plaintiff asserts that it is thus entitled to receive the full undelivered amount sold and to exercise rights against the collateral.

In addition, the Complaint alleges that on June 26, 2025, Isaias Ocampo Brito ("Signatory") entered into a Personal Liability Agreement (the "Personal Liability Agreement") in connection with the Agreement under which Brito unconditionally and jointly and severally personally guaranteed immediate payment to Plaintiff of all sums that become due upon an event of non-performance by Merchant Defendants.

Plaintiff alleges that despite demand to do so, Merchant Defendants and the Signatory have failed and refused to pay any of the amounts due following such demand. As of the filing of this action, Plaintiff asserts that the outstanding balance under the Agreement is no less than \$586,774.92, exclusive of fees, costs, and interest.

ANALYSIS:

A plaintiff may apply for a writ of possession by filing a written application for the writ with the court in which the action is brought. (CCP, § 512.010 subd. (a).) "The application shall be executed under oath and shall include all of the following:

(1) A showing of the basis of the plaintiff's claim and that the plaintiff is entitled to possession of the property claimed. If the basis of the plaintiff's claim is a written instrument, a copy of the instrument shall be attached.

(2) A showing that the property is wrongfully detained by the defendant, of the manner in which the defendant came into possession of the property, and, according to the best knowledge, information, and belief of the plaintiff, of the reason for the detention.

(3) A particular description of the property and a statement of its value.

(4) A statement, according to the best knowledge, information, and belief of the plaintiff, of the location of the property and, if the property, or some part of it, is within a private place which may have to be entered to take possession, a showing that there is probable cause to believe that such property is located there.

(5) A statement that the property has not been taken for a tax, assessment, or fine, pursuant to a statute; or seized under an execution against the property of the plaintiff; or, if so seized, that it is by statute exempt from such seizure." (CCP, § 512.010 subd. (b).)

Prior to the hearing, the defendant shall be served with all of the following: (1) a copy of the summons and complaint; (2) a Notice of Application and Hearing; and (3) a copy of the application and any affidavit in support thereof. (CCP, § 512.030 subd. (a).)

Here there is no proof of service demonstrating that the Complaint, the Notice of Application or a copy of the Application has been served on the Merchant Defendants, against whom the writ is directed.

Accordingly, the Application is DENIED, without prejudice to Plaintiff refiling the Application after effecting proper service.

RULING:

Plaintiff Rewards Network Establishment Services, Inc.'s Application for Writ of Possession is DENIED, without prejudice.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.